

**AMENDMENT NO. 1 TO CONTRACT NO. 4989
USE AGREEMENT BETWEEN
CITY OF CHEYENNE, WYOMING
AND
ROCKY MOUNTAIN PIPELINE SYSTEM, LLC**

Approved as to
form only:

D. White

Date: 7/31/2015

The following sections of Contract No. 4989 between the City of Cheyenne and Rocky Mountain Pipeline System, LLC dated November 30, 2006 are hereby amended:

1. **Section 2. Permission Granted.**

a. The City hereby grants to the Company limited permission to install a petroleum pipeline along the public right-of-way in Cheyenne, Wyoming, for a distance of approximately thirteen thousand, three hundred thirty two (13,332) linear feet. The specific area where the pipeline will be installed is contained in Exhibit A to the agreement. **With this amendment, the City hereby grants to the Company limited permission to install two additional petroleum pipelines along the public right-of-way in Cheyenne, WY for a distance of approximately one thousand four hundred (1,400) linear feet each as shown in the attached Exhibit B.**

b. This permission for use is granted for a period not to exceed ten (10) years commencing upon execution of this **the original** agreement.

2. **Section 5. Legal Construction.**

This agreement shall not be construed as a comprehensive franchise agreement. Its terms are limited to the approximately thirteen thousand three hundred thirty two (13,332) linear feet of public right-of-way **granted under the original agreement and the additional two thousand eight hundred (2,800) linear feet granted under this amendment.** Any expansion beyond that initial pipeline installation shall require amendment of this agreement with the City of Cheyenne. This agreement is entered into for the benefit of the Company, as installation of the specified pipeline is slated to commence approximately on the 1st day of November, 2006, and the City of Cheyenne does not intend to burden or delay such installation.

3. **Section 7. Compensation.**

As consideration for this agreement, Company shall pay to the City one dollar and fifty cents (\$1.50) per linear foot of pipeline or related Facilities in the City right-of-way, due upon execution of this agreement, and upon each anniversary date of this agreement until it expires or terminates. Company may pay all of the **remaining** amount due of **twenty four thousand one hundred ninety eight dollars (\$24,198)** ~~one hundred ninety nine thousand nine hundred eighty dollars~~

(\$199,980) for the **remainder of the** ~~full ten (10) year~~ term of the agreement in one lump sum upon execution of this agreement.

All other aspects of the original agreement remain unchanged and in full force and effect.

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This Amendment shall be in full force and effect when executed by all parties.

Dated this _____ day of _____, 2015.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

ROCKY MOUNTAIN PIPELINE
SYSTEM, LLC

BY: _____

Title: _____

WITNESS:

Title: _____

